

not an opportunity for the applicant to reshape his claims arbitrarily (G 1/03, point 3 of the Reasons). Therefore, the disclaimer should not remove more than was necessary to restore novelty or to disclaim subject-matter excluded from patentability for non-technical reasons. From that the board found that it could not be derived from the reasoning of G 1/03 that a patent proprietor was permitted a degree of **discretion or latitude** concerning the "border" within which the disclaimer should be drafted with respect to the subject-matter to be excised. On the contrary, the existence of any discretion regarding the extent of the disclaimer as compared to the subject-matter to be excluded would inevitably introduce a degree of arbitrariness in the drafting of the disclaimer. This would conflict with the express findings of G 1/03. See also T 2277/18 (with reference to T 8/07 und T 795/05).

In T 477/09 claim 1 was modified by addition of an undisclosed disclaimer with a view to restoring its novelty over document D1. The board observed that two conditions relating to the wording of disclaimers had been established in points 2.2 (disclaimer should not remove more than is necessary) and 2.4 (clarity and conciseness) of the Order made in G 1/03 and that those two conditions were equally applicable. In the case at hand, the board found that the scope of the disclaimer was greater than the actually novelty-destroying disclosure in D1.

In T 2130/11 the board dealt again with these two conditions and held that the condition that the disclaimer should not remove more than is necessary to restore novelty (G 1/03) should be applied while taking into consideration its purpose, namely that the "necessity for a disclaimer is not an opportunity for the applicant to reshape his claims arbitrarily" (G 1/03). A disclaimer removing more than was strictly necessary to restore novelty would not contradict the spirit of G 1/03, if it were required to satisfy Art. 84 EPC and it did not lead to an arbitrary reshaping of the claims (for more details see chapter II.E.1.7.3.e) below).

In T 1354/15 the appellant had argued that, since the disclaimer at issue specified not merely the specific L-dsRNA sequence disclosed in D7, but also the C18 linker group between the two strands, it removed more than was necessary to restore novelty. In the board's view however, the RNA described in D7 was characterised also by the C18 linker. The fact that the application as filed did not contemplate such linkers did not result in the skilled person being presented with new technical information. Excluding the specific RNA having a C18 linker did not provide any technical contribution to the subject-matter disclosed in the application as filed.

(iv) Reference to a comparative example in prior art

In T 1843/09 (OJ 2013, 508) the opponent argued that the disclaimer contravened Art. 123(2) EPC because the wording of the disclaimer that the claimed film "is other than a film of Comparative Example 4 of EP-A 0546184" did not represent a technical feature. The board did not accept this argument. Although it was true that technical information could not directly be extracted from the wording of the disclaimer as such, it should be noted that the disclaimer did not merely cite a published patent document, but clearly referred to a specific disclosure in D15, namely a single film described in comparative

example 4. Table 4 of D15 characterised this film unambiguously by a number of technical features. The skilled person was therefore able to determine simply by reading the comparative example in D15 which technical embodiment should be excluded from the scope of the claim.

(v) Disclaimed subject-matter not comprised by the claim

In T 1836/10 the examination division had based its refusal of the application on Art. 53(a) in conjunction with R. 28(c) EPC. The applicant attempted to disclaim the relevant subject-matter. The board considered that an applicant could not amend his claims at will, and that any disclaimer needed should not exclude any more than was necessary to disclaim subject-matter excluded from patentability for non-technical reasons. The same applied to a disclaimer which served to disclaim subject-matter that was not comprised by the claim in the first place (since the subsequent use of the stem cells had not been claimed as a method step).

c) Drafting of disclaimers – disclaimer shall not remove less than is necessary

In case T 440/04 the question was whether disclaiming example 1 of C63 was sufficient to restore novelty. Whereas on the one hand a disclaimer should not remove more than was necessary to restore novelty, it cannot, on the other hand, be considered to serve its intended purpose when it excises less than what is necessary to restore novelty. The disclosure in C63 of fibres having compositions and properties as required by the present claims 1 according to all requests was not limited to the fibres described in example 1 of C63. "Cutting out" the latter fibres was thus not sufficient to exclude from the said claims 1 all those fibres disclosed in C63 having a composition and the inherent properties according to said claims.

d) Drafting of disclaimers – delimitation against any potential prior art

In T 285/03 the board found that the interpretation offered by the appellant amounted to a disclaimer although it was not phrased in the usual form. However, that disclaimer was not based on a particular prior art disclosure, whether accidental or not, but tried to delimit the claim against any potential prior art disclosure, contrary to the principles set out in G 1/03.

e) Drafting of disclaimers – clarity

The Enlarged Board of Appeal stated in G 1/03 and G 2/03 (OJ 2004, 413 and 448) that the requirements of conciseness and clarity of Art. 84 EPC 1973 were also applicable to claims containing disclaimers. This meant that a disclaimer was not allowable if the necessary limitation could be expressed in simpler terms in positive, originally disclosed features in accordance with R. 29(1), first sentence EPC 1973 (R. 43(1) EPC). In addition, a plurality of disclaimers might lead to a claim drafting which put an unreasonable burden on the public to find out what was protected and what was not protected. A balance had to be struck between the interest of the applicant in obtaining adequate protection and the interest of the public in determining the scope of protection with reasonable effort.

In the interest of transparency of the patent, it should be clear from the specification that there was an undisclosed disclaimer and why it had been introduced. The excluded prior art should be indicated in the description in accordance with R. 27(1)(b) EPC 1973 (R. 42(1)(b) EPC) and the relation between the prior art and the disclaimer should be shown.

The following rulings on the clarity of claims including a disclaimer were handed down after the decisions in G 1/03 and G 2/03:

(i) Combination of features taken from different documents

In T 161/02 the board pointed out that the disclaimer combined features which arose from two different documents of prior art, the combination of these features resulting in a disclaimer that corresponded to neither the disclosure of the first nor that of the second document, and which did not make any technical sense. The board held that such a disclaimer rendered the claim unclear within the meaning of Art. 84 EPC 1973, as it did not allow the public to find out what was protected and what was not protected.

(ii) Disclaimer excluding treatment by surgery or therapy

To justify the exclusion expressed by the formulation "non-therapeutic use" at the beginning of the disputed claim, the appellant in T 67/02 had cited G 1/03 and G 2/03 (OJ 2004, 413 and 448), which had ruled that disclaimers were admissible for subject-matter not patentable under Art. 52 to 57 EPC 1973. However, the board found that in the present case it was not possible to identify a clear distinction between cosmetic use and therapeutic treatment. The board therefore took the view that the exclusion rendered the claimed subject-matter unclear.

In T 1695/07, claims 1 to 8 of the main request were found by the board to be directed to a method for treatment of the human body by surgery which is excepted from patentability under Art. 53(c) EPC. Claim 1 of auxiliary request 2 included the feature "wherein the process is not a method for treatment of the human or animal body by surgery". Concerning the admissibility of a disclaimer excluding subject-matter not eligible for patent protection, the board in this case first stressed with reference to G 1/03 (OJ 2004, 413) that the requirements of Art. 84 EPC are also applicable to claims containing disclaimers. A clear delimitation and distinction between excepted surgical applications and possibly allowable non-surgical applications of the claimed process requires that the two methods be distinct, i.e. **separable**, which means that they must be of a different nature and may be carried out in different ways. In the board's view, it could not be seen how the claimed process would work without the surgical steps involved.

In T 1487/09 the board observed that the uses excluded (namely, uses that "comprise or encompass an invasive step representing a substantial physical intervention on the body of a human or an animal which requires professional medical expertise to be carried out and which entail a substantial health risk even when carried out with the required professional care and expertise") were not explicitly defined, but rather must be derived from a condition which was to be fulfilled. Whether this condition was fulfilled or not would

have to be established by the reader of the claim. Leaving room for such an assessment by the reader inevitably introduced uncertainty as to the matter for which protection was sought. Hence a lack of clarity arose, which was in breach of Art. 84 EPC. Further, the fact that the wording chosen for the disclaimer was the same as the one used in decision G 1/07 for describing a surgical method did not mean that the claim fulfilled the clarity requirements of Art. 84 EPC. This had to be handled on a case-by-case basis.

In T 1916/19, which related to a non-therapeutic method of providing an anti-microbial effect to skin, the board considered that the claim was clear since such non-therapeutic methods existed and could be identified. In particular the claims were not self-contradictory and the claimed scope was not rendered void by the disclaimer, unlike in T 1635/09 or T 767/12.

(iii) Hiding a disclaimer

In the claim at issue in T 201/99 the appellants (patent proprietors) replaced the range of treatment times "1-10 minutes" by "1-6 minutes". They argued that the range of 1 to 6 minutes should be regarded as disclaiming a sub-range of more than 6 to 10. The board, however, emphasised that Enlarged Board of Appeal decisions G 1/03 and G 2/03 (point 3 of the Reasons) explicitly ruled out the possibility of hiding a disclaimer by using an undisclosed positive feature defining the difference between the original claim and the anticipation, since this would affect the transparency of the patent (Art. 84 EPC 1973).

(iv) Interpretation of terms

In T 286/06 the board held that it derived from the purpose of Art. 84 EPC 1973 to ensure legal certainty, that the wording of a claim could not be interpreted by taking into consideration the teaching of further publications not referred to explicitly in the original documents of the application as being relevant for the interpretation of terms used in the description or in the claims. This applied also in the case of a disclaimer, as the only justification for its introduction in a claim was to exclude a novelty-destroying disclosure and it did not represent an opportunity for the applicant or patent proprietor to reshape its claims arbitrarily (see G 1/03, OJ 2004, 413). The board evaluated the clarity of claim 1, considering what the skilled person would have understood in reading the claim only, taking into consideration common general knowledge. The board concluded that the wording of claim 1 was unclear.

(v) Reference to a trademark

In T 447/10, the board stated that according to the established case law of the boards of appeal, the characterisation of a product in a claim by reference to a trade mark lacked clarity because the product's composition could change over the term of the patent (see T 762/90, T 270/11, T 2030/13). In the case at issue, the disclaimer excluding a composition sold under a trade mark was of an uncertain scope, such that the subject-matter of claim 1 in the requests in question lacked clarity.

(vi) Disclaimer removing more than strictly necessary to restore novelty for clarity reasons

In T.477/09 board observed that two conditions relating to the wording of disclaimers had been established in points 2.2 (disclaimer should not remove more than is necessary) and 2.4 (clarity and conciseness) of the Order made in G.1/03 and that those two conditions were equally applicable. The patent proprietor therefore could **not** be considered to have any **room for manoeuvre** in wording the disclaimer and thereby defining its scope: to satisfy the conditions set out in G.1/03, a disclaimer could not remove more than was necessary to restore novelty.

In T.2130/11 the board held that the requirements of Art. 84 EPC must apply for a disclaimer as for any other feature of a patent claim. However, the condition that the disclaimer should not remove more than is necessary to restore novelty (G.1/03) should be applied while taking into consideration its purpose, namely that the "necessity for a disclaimer is not an opportunity for the applicant to reshape his claims arbitrarily" (G.1/03). In this respect situations could be foreseen, in which, while fulfilment of the condition taken in a strictly literal way would not be possible, a definition of the disclaimed subject-matter, which satisfied the requirements of Art. 84 EPC and fulfilled the purpose of the condition (i.e. to avoid an arbitrary reshaping of the claims), might be achievable. In other words, a disclaimer removing more than was strictly necessary to restore novelty would not contradict the spirit of G.1/03, if it were required to satisfy Art. 84 EPC and it did not lead to an arbitrary reshaping of the claims. In T.1399/13 the board concurred with the approach taken in T.2130/11.

f) Undisclosed disclaimer must not be related to the teaching of the invention

According to G.1/03 (OJ 2004, 413), a disclaimer which makes a technical contribution, in particular which is or becomes relevant for the assessment of inventive step or sufficiency of disclosure, adds subject-matter contrary to Art. 123(2) EPC (point 2.3 of the Order; point 2.6 of the Reasons). In G.1/16 (OJ 2018, A70) the Enlarged Board endorsed the concept that the undisclosed disclaimer may not be related to the teaching of the invention and provided the following clarifications: Introducing any disclaimer into a claim necessarily changes the technical information. The question to be asked in this context is not whether an undisclosed disclaimer quantitatively reduces the original technical teaching – this is inevitably the case – but rather whether it **qualitatively changes** it in the sense that the applicant's or patent proprietor's **position with regard to other requirements for patentability** is improved. If that is the case, then the original technical teaching has been changed by the introduction of the disclaimer in an unallowable way.

In T.788/05 the undisclosed disclaimer was introduced by the appellant during the examination procedure with the purpose of establishing the novelty of the claimed subject-matter with respect to D1, which was then considered as a prior art document relevant under Art. 54(3) EPC 1973. In the case at issue, the relevant prior art was represented by documents D1 and D5. To be allowable the disclaimer had to fulfil the conditions in relation to both documents. As far as D1 was concerned, the disclaimer appeared to be appropriate. D5 represented the state of the art under Art. 54(2) EPC 1973. As D5 was not state of the art under Art. 54(3) and (4) EPC 1973 and was not an accidental disclosure, the disclaimer would only be allowable if it did not add subject-matter within the meaning of Art. 123(2) EPC 1973, i.e. if the disclaimer did not become relevant for the